

# Shri Sudama Yadav vs Union Of India And Ors on 23 March, 2017

IN THE HIGH COURT OF MEGHALAYA  
AT SHILLONG

WP(C) No. 52 of 2012

No. G/95406 W Rifleman/GD  
Sudama Yadav,  
S/o (L) Ram bali Yadav,  
R/o Head Quarter 9th Assam Rifles,  
C/O 99 A.P.O.

.....Petitioner

- Versus -

1. The Union of India  
Represented by the Secretary,  
Ministry of Home Affairs,  
Government of India,  
New Delhi.
2. The Director General of Assam Rifles,  
Laitkor, Shillong,  
Meghalaya-793010.
3. The General Officer Commanding,  
Head Quarter Eastern Command,  
Fort William, Kolkatta-21.
4. The Brigadier (Pers)  
H.Q. Director General Assam Rifles,  
Laitkor, Shillong,  
Meghalaya.
5. The Inspector General Assam Rifles,  
C/O 99 A.P.O.
6. The Commandant,  
H.Q. 9th Assam Rifles,  
PIN- 932009,  
C/O 99 A.P.O.

.....Respondents

BEFORE  
HON'BLE MR JUSTICE VED PRAKASH VAISH  
Present

Mr. R. Jha ... Counsel for petitioner

Mr. N. Mozika ... Counsel for Respondents

Date of Hearing . . . 23.03.2017

Date of Order . . . 23.03.2017

WP(C) No. 52 of 2012

Page 1 of 4

BY HON'BLE MR. JUSTICE V.P. VAISH (ORAL)

ORDER

By way of the present petition under Article 226 of the Constitution of India, the petitioner impugns order dated 30th November, 2002 issued by the respondent No. 3, General Officer Commanding-in-Chief, Headquarters Eastern Command, Kolkata whereby it was directed that an amount to the extent of 27.5% towards maintenance be deducted from the pay and allowance of the petitioner.

2. The case of the petitioner is that the petitioner was enrolled as a recruit in Assam Rifles on 30th November, 1991 as a Rifleman General Duty. The marriage between the petitioner and Smti Dharam Shilla was solemnized on 13th May, 1989 and his wife left the matrimonial house in the month of February, 1995. It is also stated that the petitioner was harassed by his wife and she lodged CR Case No. 2468 of 2001 under Section 494, 109, 498 (A), 406 IPC.

3. It is also stated that the wife of the petitioner filed a petition under Section 125 Cr. P.C. for grant of maintenance, being Case No. 2614 of 2002 and the Court awarded interim maintenance @ Rs. 800/- pm and the petitioner has been paying the said maintenance to his wife.

4. It is further stated that the wife of the petitioner filed a petition under Section 13 of the Hindu Marriage Act, being Case No. 230 of 2004 and the same is pending.

5. It is also stated that respondent No. 3 in exercise of powers conferred under Section 91 (i) of the Army Act 1950 read with Rule 193 of the Army Rules, 1950 awarded maintenance allowance to the tune of 27.5% and the same was ordered to be deducted from the pay and allowance of the petitioner vide impugned order dated 30th November, 2002.

6. The petition has been opposed by the respondents by filing affidavit-in-opposition.

7. I have heard the learned counsel for both the parties and perused the material on record.

8. The main grievance of the petitioner is that no opportunity of hearing was afforded to the petitioner before passing the impugned order dated 30th November, 2002.

9. During the course of arguments, Mr. N. Mozika, learned counsel for respondents fairly concedes that opportunity of hearing was not given to the petitioner and submits that he has no objection if the impugned order dated 30.11.2002 is set aside and the competent authority of respondent No. 2

will pass a fresh order after affording opportunity of hearing to the petitioner.

10. Mr. R. Jha, learned counsel for the petitioner is satisfied with the same. He also submits that the petitioner will not claim refund of the amount of compensation already deducted from the salary of the petitioner. Learned counsel for both the parties have agreed that the amount of maintenance deducted from the salary of the petitioner till date will be adjusted towards the amount of maintenance to be paid to the wife of the petitioner.

11. In view of the facts and circumstances of the case and submissions made by learned counsel for both the parties, the impugned order dated 30th November, 2002 is set aside and it is directed that the competent authority of respondent No. 2 shall pass a fresh order on the application of the wife of the petitioner after affording reasonable opportunity of hearing to the petitioner as well as wife of the petitioner, in accordance with law. However, it is made clear that the amount of maintenance paid/deducted from the salary of the petitioner will be adjusted towards the amount of maintenance awarded by Court under Section 125 of Cr.P.C. In case the competent authority comes to the conclusion that the petitioner is liable to pay some other amount, the amount already paid will be adjusted towards the same.

12. The writ petition stands disposed of accordingly.

JUDGE Dated, the 23rd March, 2017 V. Lyndem